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| <p>2025-01516957</p> | <p>Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate. (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4th 1164, 1169.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and "[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 [cleaned-up].)</p> <p>Defendants submitted the TriNet dispute resolution protocol that contained an arbitration clause. In response, plaintiff presented evidence that TriNet ceased serving as the PEO for defendants prior to the dispute that gives rise to this litigation. Plaintiff argues that the TriNet agreement was no longer in effect, citing <i>Litton Financial Printing v. NLRB</i> (1991) 501 U.S. 190, 205-006. ("A postexpiration grievance can be said to arise under the [expired] contract only where it involves facts and occurrences that arose before expiration, where an action taken after expiration infringes a right that accrued or vested under the agreement, or where, under normal principles of contract interpretation, the disputed contractual right survives expiration of the remainder of the agreement.")</p> <p>Defendants counter that the TriNet arbitration agreement had a survivorship clause, which places plaintiff's claims within the type of disputes that <i>Litton</i> permits. The survivorship clause reads: "This DRP will survive the termination of the employment relationship. With only the exceptions described below in subsection (b), arbitration will be used instead of going before a court (for a judge or jury trial) and even in the situations described below, NO JURY TRIAL WILL BE PERMITTED (unless applicable law does not allow enforcement of a pre-dispute jury trial waiver in the particular circumstances presented)."</p> <p>The plain reading of this text shows that arbitration would be compelled in a situation where the employee's employment with OHI ends. Such is the case here.</p> |
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|     |                                                                     | <p>Thus, defendants have demonstrated that the expired agreement that contained the arbitration clause remains in effect based on the language quoted above, and the reasoning of <i>Litton</i>.</p> <p>Plaintiff also argues novation, but has failed to demonstrate that the new agreement between ADP, plaintiff and defendants involves the same parties as the TriNet agreement. Civ. Code § 1531.</p> <p>Defendants' evidentiary objections are OVERRULED.</p> <p>Plaintiff is ordered to arbitrate his claims.</p> <p>This matter is STAYED pending completion of the arbitration.</p> <p>The case management conference is vacated.</p> <p>The court sets a status conference regarding the arbitration for January 22, 2027 in Department C28 at 9:00 a.m. Five days before the status conference the parties are ordered to submit a joint statement concerning the arbitration.</p> <p>Defendants shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 55. | <p>Rosas v. American Honda Motor Co., Inc.</p> <p>2025-01455312</p> | <p>Defendant American Honda Motor Co., Inc.'s Motion to Tax Costs is GRANTED in part and DENIED in part.</p> <p>Defendant seeks an order striking Plaintiffs' Memorandum of Costs (seeking \$1,036.65 in costs) in its entirety or, alternatively, taxing it by \$323.30.</p> <p>Code of Civil Procedure § 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure Section 1033.5 sets forth the items that are allowable as costs. Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. Additionally, Code of Civil Procedure section 1033.5(c) states that allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation."</p> <p>"If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (<i>Ibid.</i>) But conclusory assertions alone are not enough to cause this</p> |